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February 11, 2025

By: Rader of the Senate

and

Moore of the House

An Act relating to schools; amending 70 O.S. 2021, Section 13-116, which relates to use of corporal punishment on certain students; prohibiting use of corporal punishment on any student identified with certain disability; removing language authorizing certain waiver; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 13-116, is amended to read as follows:

Section 13-116. A. School district personnel shall be prohibited from using corporal punishment on ~~students~~ any student identified with ~~the most significant cognitive disabilities~~ according to criteria established by the State Department of Education unless addressed in an annual individualized education program (IEP) developed a disability in accordance with the Individuals with Disabilities Education Act (IDEA).

1 B. ~~A waiver to the provisions of subsection A of this section~~
2 ~~shall be granted if the parent or legal guardian of a student~~
3 ~~provides written consent.~~

4 C. As used in this section, "corporal punishment" means the
5 deliberate infliction of physical pain by hitting, paddling,
6 spanking, slapping, or any other physical force used as a means of
7 discipline.

8 SECTION 2. This act shall become effective July 1, 2025.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health, or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

13 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
14 February 11, 2025 - DO PASS
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